3. **1951**

FAR EASTERN

JAPAN

FJ1022/G 16

68

Sir O. Franks
Washington
129
12. 1. 51
15. 1. 51.

United States views on a Japanese Peace Treaty.

Comments on views given by Mr Dulles concerning the above.

Last Paper

References

FJ1021/232 G.
1950.

(Print)

(How disposed of)

9) S'pore No 28 Jan 17.

8) Lt Col Street COS.
Col Barry JPS.
Jan 18th

5c) Capt Butler Bawden
COS.
Jan 26

8) Mr [illegible] B/T
Mr [illegible] B/T Feb 8

OVER

(Action completed)	(Index)
RR 8/2	

Next Paper

(Minutes)

Copied to Singapore
Major Barry (J.P.S.)
Lt. Col. Street (C.O.S. Sect).

1. I do not think that any action is necessary on this telegram ~~at~~ until replies are received from Tokyo & Washington to the telegrams despatched yesterday asking for their comments on the proposal that we should now put our views on the peace treaty to the Americans.

2. When we hear from Tokyo & Washington, & if it is decided to do as above, this telegram — particularly the proposals in para 4, — will have to be considered in putting our proposals to the F.E.(O)C.

3. I suggest that para 4 be extracted & circulated separately.

Mr. C.H. Johnston.

(C.L. Scott) 19/1.

Paras. 2 and 3. I agree.
I have altered the first draft tel. to refer to FJ 1022/20, now received.
C.H. J. ~~Johnston~~
19.1

3. **1951**

FAR EASTERN

JAPAN

FJ1021/G/16

68

Sir O. Franks
Washington
129
12.1.51
18.1.51.

United States views on a Japanese Peace Treaty.

Comments on views given by Mr Dulles concerning the above.

Last Paper

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FJ1021/232 G. 1950.

(Print)

(How disposed of)

Copies to Mr Makins

9) S'pore No 28 Jan 17.

S/Lt Col Street COS.
Col Barry JPS.
Jan 18th

Sc) Capt Butler Bowden
COS.
Jan 26

8/ Mr ~~Fowler~~ OVER B/T
Mr Mackenzie B/T Feb 8

(Action completed)	(Index)
RR 8/2	W/B.

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Mr. C.H. Johnston.

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/See

C.H.J. ~~Johnston~~.
19.1.

See further minutes.

Copy to Japan Peace Treaty Distribution

7/2

69

8) Japanese Peace Treaty Distribution

i.e.

Mr Graham Smith	Admty
Lt Col Field	W.O
W/Cdr Shaw Mr Lawson	AM
Mr Parry	M/Def
Mr Phelps	Tsy
Mr Percival	B/T
Mr Paskin	CO.
Mr Pritchard	CRO
Mr Ormond	M/T
Mr Lawton	M.C.A.
Mr Croome	CEPS Tsy
Mr Mackenzie	AEPD
Col Barry	J.PS.
Lt Col Street	COS.

Feb 8th

Tel) ~~Tokyo~~ W'ton 294
S'pore 120

Jan 23

Rptd. Tokyo 109

Copies COS Sect
CRO
CO.

See further minutes.

Copy to Japan Peace Treaty Distribution

7/2

69

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i.e.

Mr Graham Smith	Admty
Lt-Col Field	W.O
W/Cdr Shaw	AM
Mr Rawson	AM
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Mr Phelps	Tsy
Mr Percival	B/T
Mr Paskin	CO.
Mr Pritchard	CRO
Mr Ormond	M/T
Mr Lawton	M.C.A.
Mr Croome	CEPS Tsy
Mr Mackenzie	AEPD
Col Barry	J.PS.
Lt Col Street	COS.

Feb 8th

Tel ~~Tokyo~~ W'ton 294

S'pore 120

Jan 23

Rptd. Tokyo 109.

Copies COS Sect

CRO

CO.

ISTRY
FJ1022/8/Green

REPETITION OF TELEGRAMS

CYPHER

(Date) Jan. 19th
(Despatched) 10.35 a M.

(1) Telegram Section,
Foreign Office.

70

Please repeat to the posts shown below telegram No. 129

from/~~to~~ Washington to F.O. dated Jan. 12th

Manila No. 16 (Date) Jan. 19th
19-1-51

No.

No.

(Signed) C.H. Johnston

(Dept.) Japan & Pacific

(Date) Jan. 19th

~~En clair.~~
~~Code~~
Cypher

6.45 pm
19/1/51

(2) Division concerned (for Archives).

ISTRY

EPETITION OF TELEGRAMS

CYPHER

FJ1022/8/Green

(Date) Jan. 19th [illegible]

(Despatched) 10.35 a M.

(1) TELEGRAM SECTION,
FOREIGN OFFICE.

70

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from/~~to~~ Washington to F.O. dated Jan. 12th

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19-1-51

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(Signed) C.H. Johnston

(Dept.) Japan & Pacific

(Date) Jan. 19th

~~En clair.~~
~~Code~~
Cypher

6.45 pm
19/1/51

(2) DIVISION CONCERNED (FOR ARCHIVES).

PUBLIC RECORD OFFICE
Reference:-
FO 371/92529
COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION
1 2 3 4 5 6
1 2

Cree FJ1022/16 G
FJ102

[This telegram is of particular secrecy and should be retained by the authorised recipient and not passed on]

Cypher/OTP

FOREIGN OFFICE SECRET DISTRIBUTION

FROM WASHINGTON TO FOREIGN OFFICE

Sir O. Franks
No.129
12th January, 1951.

D. 9,15 p.m. 12th January, 1951
R. 10.02 a.m. 13th January, 1951

SECRET

Addressed to Foreign Office telegram No. 129 of 12th January,

Repeated for information to Tokyo FJ1021/2329

My telegram No. 858 Saving: Japanese Peace Treaty.

Dulles asked me to call today to hear his views on the broad issues that have to be considered and to tell me what is in his mind at this particular moment. He expects to leave for Japan on or about January 22nd, his visit there lasting a fortnight. Dulles will assume the status of an Ambassador and will be accompnaied by Mr. Allison, Major-General Carter B. Magruder and Colonel Stanton Badcock. What follows in paragraphs 2 and 3 is intended for His Majesty's Government in the United Kingdom only and Dulles asked that no portion of it should be communicated to any other Government. He does not propose at this stage to speak in a similar vein to other Far Eastern Commission representatives.

2. The main purpose of Dulles' visit is to ascertain whether the general strategy of the Pacific can be based on a policy of cooperation with Japan. Incidental to this are the questions of

(a) to what extent will Japan be able and willing to assume the burden of her own defence
(b) the mood of the people
(c) the application and effects of the present constitution.

Looking for a moment at the post-treaty period Dulles said that the United States Government would be able to give air and sea power cover plus a modest ground force support until such time as the Japanese could provide their

/own land.....

FJ [illegible]/G

(This telegram is of particular secrecy and should be retained by the authorised recipient and not passed on) 71

Cypher/OTP FOREIGN OFFICE SECRET DISTRIBUTION

FROM WASHINGTON TO FOREIGN OFFICE

Sir O. Franks
No. [illegible]
12th January, 1951.

D. 9.15 p.m. 12th January, 1951
R. 10.02 a.m. 13th January, 1951

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Repeated for information to Tokyo FJ1021/2326

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own land defence. Their economic position though would require careful attention. It was now imperilled by what might happen in South East Asia and the programme of linking the industrial production of Japan to the rice and resources of South East Asia might not be capable of fulfilment. There is accordingly a potential threat to the viability of Japan. Dulles thought that this could be offset to a great extent if the Japanese were invited to join what might be described as an elite Anglo-Saxon club. An association with the major Western Powers would undoubtedly have an important appeal to the Japanese: they would feel more secure and it would suit their sense of prestige. The basic approach to the problems should therefore be along the lines of encouraging the Japanese towards full cooperation and should be away from the idea of imposing bonds.

3. Dulles then dealt with the pattern of defence in the Pacific developing the theory that Japan could be incorporated in an island group consisting of Australia, New Zealand, Indonesia (if she were willing), Philippines, Japan and United States (represented for geographical purposes by the Hawaii Command). Perhaps Japan's military police force could, he said, be so integrated into the land force of the group that it would not be necessary to amend the constitution to permit the establishment of an army. This would need careful consideration but if Japan's para-military units could be placed under the general direction of an international authority the problem might be solved. I asked Dulles at this point whether he had in mind inviting the United Kingdom to associate itself with this island group. He replied that he was thinking of His Majesty's Government as a valued consultant but not as an active member of the group. He went on to say that the idea of the island group ought to appeal to Australia and New Zealand since a joint supervision over Japan would in effect be in force and if Japan gave signs of being a menace both Dominions would

/be able to feel....

SECRET

Washington telegram No. [illegible] to Foreign Office

72

-2-

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be able to feel that they would get United States support. Dulles did not however infer that Australia and New Zealand would obtain the guarantees which might be expected in a pact.

4. I was then given a memorandum which is in substance an expansion of the Dulles seven principles [illegible] probably be given to other Far Eastern Commission delegates within the next few days. It reads as follows

[Begins].

In elaboration of the United States seven point statement of principles regarding a Japanese Peace Treaty handed representatives of the nations members of the Far Eastern Commission it is suggested that the Treaty would follow these general lines:

1. It would formally end the state of war between the allied and associated Powers which adhered to the Treaty and Japan.

2. It would restore full sovereignty to Japan.

3. It would bind Japan to apply for membership in the United Nations and the allied and associated powers to support its application.

4. As regards territory, the Treaty would require Japan to renounce all interest in Korea, Formosa and the Pescadores and to accept a United Nations trusteeship with the United States as administering authority over the Ryukyu and Bonin islands. Japan would accept the establishment of the trust territory of the Pacific islands.

5. As regards security, the Treaty would require Japan to accept the obligations of article 2 of the Charter of the United Nations and the other parties would undertake reciprocally to be guided by those same principles with relation to Japan. Continuing cooperative responsibility between Japanese facilities and United States forces would be provided for as a further guarantee of peace and security in the Japan area. The facilities required, rights of movement of the garrison forces, sharing of costs and similar questions regarding the detailed implementation of the security arrangements would

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be the subject of a supplementary bilateral agreement between the United States and Japan. Forces of other Treaty Powers might also cooperate by agreement with the United States under over-all United States command. The garrison forces would not have any responsibility or authority to intervene in the internal affairs of Japan except at the request of the Japanese Government to assist in the suppression of internal violence. While the Treaty would neither prohibit nor specially authorise the establishment of Japanese defence forces it is natural to assume that the Japanese will progressively assume a larger part of the burden of their own defence. The Treaty security provisions would remain in effect until the Powers providing garrison forces agreed that assumption of responsibility for Japanese security by the United Nations or some other security arrangement could be safely substituted.

6. In the political and economic fields Japan would

(a) declare its intention to secure the fundamental human rights to all persons under Japanese jurisdiction

(b) agree to adhere to multilateral treaties designed to prevent the misuse of narcotics and to conserve fish and wildlife

(c) agree to the revival of prewar bilateral treaties by mutual agreement of both parties within six months, and

(d) renounce all special rights or interests in China.

The power to grant clemency reduce sentences, parole and pardon with respect to war criminals incarcerated in Japan would be exercised jointly by Japan and the Government or Governments which imposed the sentences in each instance, and, in the case of persons sentenced by the International Military Tribunal for the Far East by Japan and a majority of the Governments represented on the tribunal. Pending the conclusion of new commercial treaties Japan during a period of three years would extend most-favoured-national or national

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7. All parties would waive claims arising out of acts taken during the war prior to September 2nd 1945 except that

(a) each of the allied and associated Powers would retain and dispose of Japanese property within its territories except diplomatic and consular property and a few other limited categories substantially as set forth in the treaties of 1947, and

(b) Japan would restore upon demand allied property in Japan or if such property whether or not taken under the control of the Japanese Government is not restorable intact would provide yen to compensate for an agreed percentage of lost value. Japan would waive a value. Japan would waive all claims arising out of the presence of the occupation forces in Japan since surrender.

8. Disputes concerning the interpretation or execution of the Treaty not settled through the diplomatic channel, except disputes arising out of the security arrangements, would be referred for decision to the International Court of Justice, all of the Treaty signatories undertaking to comply with the decisions of the Court.

A specially established arbitral tribunal appointed by the President of the International Court of Justice from nationals of countries which were neutral in World War II would settle claims, disputes. Disputes in connexion with the security previons would be settled through the diplomatic channel.

The foregoing outline is only suggestive and does not commit the United States Government with regard to content or language.

January 12th 1951.

[Ends].

5. Dulles made the special point that the United

/States....

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January 12th 1951.

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6. I asked Dulles to keep in close touch with Gascoigne. He said he looked forward to doing so.

Foreign Office please pass to Tokyo as my telegram No. 1.

[Repeated to Tokyo].

VV
FF

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VV
FF

CYPHER

OUTFILE

77

Registry No. FJ 1022/46

SECRET

PRIORITY

with

(Date) 23/1 19

Despatched 10-40 P.M.

Draft.
WASHINGTON, 294
~~TOKYO~~ and
SINGAPORE 120

Telegram.
No. ~~294~~
(Date) Jan 23rd

Repeat to :—
Tokyo 109
(Priority)

P.U.S. Defe. ~~Amd~~ 23/1. fin.

NOTHING TO BE WRITTEN IN THIS MARGIN

Cypher.

Distribution :—
Foreign Office
Secret.

Copies to :—
Chiefs of Staff Secretariat,
C.R.O.
Colonial Office.
with covering letter, see draft.

6.50 pm
23/1/51

(25298) Wt. 40336-200 125m 2/50 G.S.St.

[Security classification —if any] SECRET

Addressed to WASHINGTON, ~~TOKYO~~ and SINGAPORE

telegram No. 294 (date) Jan 23

repeated for information to Tokyo

Washington telegram No. 129 [of the 12th January], paragraph 3.

Pacific Defence.

Slightly fuller account of Dulles's views has now been provided confidentially by United States Embassy here. According to this account, DULLES is ~~the United States Government were~~ thinking in terms of a regional group consisting of the U.S., Japan, the Philippines, Australia, New Zealand, ~~the United States,~~ and perhaps Indonesia, to meet as a Pacific Defence Council and provide for general consultation on common defence problems. Dulles ~~The United States Government~~ believed it would be best for the United Kingdom not to participate in this organisation, since that would raise immediately the question of including France, the Netherlands and Portugal, which might not be desirable now. But he wd. like to see ~~the United States Government wished to arrange~~ some type of consultative cooperation between the United States and the United Kingdom for the Pacific area.

~~2. Please see my immediately following telegram.~~

2: Wc

CYPHER

OUT FILE

Registry No. [illegible]

SECRET

PRIORITY

77

(Date) 23/1 19

Despatched 10-40 P M.

Draft.

WASHINGTON, 294

~~TOKYO~~ and

SINGAPORE 120

Telegram.

No. ~~[illegible]~~

(Date) Jan 23

Repeat to :—

Tokyo 109

(Priority)

P.U.S. Dept. first

aom 23/1.

Cypher.

Distribution :—

Foreign Office
Secret.

Copies to :—

Chiefs of Staff
Secretariat,
C.R.O.
Colonial Office.

with covering letter, see draft.

6.50pm 23/1/51

[Security classification —if any] SECRET

Addressed to WASHINGTON, ~~TOKYO~~ and SINGAPORE

telegram No. 294 (date) Jan 23

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2. We

(25298) Wt. 40338-200 125m 2/50 G.S.St.

NOTHING TO BE WRITTEN IN THIS MARGIN

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3. Singapore please inform Sir E. Dening.

CHJ

23.1.

NOTHING TO BE WRITTEN IN THIS MARGIN

78

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C.A.S.
23.1.

NOTHING TO BE WRITTEN IN THIS MARGIN

PUBLIC RECORD OFFICE
Reference:-
FO 371/92529
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OUTFILE

79

[This telegram is of particular secrecy and should be retained by the authorised recipient and not passed on]

Cypher/OTP **FOREIGN OFFICE SECRET DISTRIBUTION**

FROM FOREIGN OFFICE TO WASHINGTON

No.294
23rd January, 1951. D.10.40 p.m. 23rd January, 1951.

PRIORITY
SECRET

Addressed to Washington telegram No.294 of 23rd January and to Singapore No.120
Repeated for information to Tokyo.

Washington telegram No.129 [of the 12th January], paragraph 3.

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k k k

OUTFILE

[illegible]

Cypher/OTP [illegible]

[illegible]

No. [illegible]
23rd January, 1951. D. 10.15 p.m. 23rd January, 1951.

IMMEDIATE
SECRET.

Addressed to Washington telegram No. [illegible] of 23rd January
and to Singapore No. [illegible]
Repeated for information to Tokyo.

Washington telegram No.129 [of the 19th January],
paragraph 3.

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15